

THE MISSION ANCHOR

4ORM FINANCE INC.

Working Draft for Counsel and Pre-Seed Data Room

NOTICE. This is a working draft prepared by the founders. The Mission Anchor stands as a standalone values document of 4orm Finance Inc. (the "Company"). It is published in full, incorporated by reference into the Founders' Voting Agreement, advisor agreements, customer terms of service, vendor agreements, and employment agreements, and is enforced through Founder self-accountability and the contractual mechanisms set out below. Counsel is invited to recommend additional contractual reinforcements as appropriate.

Preamble

4orm Finance Inc. exists to help the Canadian financial system become independent and sovereign in its own self. We work to protect Canadians from the erosion of their wealth by inflationary monetary policy, debt-financed money creation, and any system that conditions access to a Canadian's own assets on the discretion of an intermediary, a regulator, or a political authority outside of law.

We are dealer-agnostic. We are nation-loyal. We serve the people of Canada first. True North, strong and free.

We carry our work as witnesses, under God, in good faith stewardship of resources that are not ours but are entrusted to us. Our accountability runs beyond shareholders, beyond markets, beyond politics, to the Canadians we serve and to the long horizon on which their lives, their families, and their freedoms depend.

Counsel Review

The Company has elected NOT to entrench the provisions of this Mission Anchor in the Articles of Incorporation, and NOT to use the Unanimous Shareholders' Agreement mechanism under Alberta Business Corporations Act section 146 to transfer specified director powers to a Mission Stewardship Trustee. The Company has considered those mechanisms and elected, instead, a soft-law approach.

Under that approach, this Mission Anchor stands as a published values document. It is reinforced by contractual incorporation across the Founders' Voting Agreement, every advisor and officer engagement, the Company's customer terms of service, material vendor agreements, and employee agreements. The Founders, as the board of the Company, hold themselves directly accountable for its observance. Counsel is invited to advise on additional contractual reinforcements (incorporation by reference in commercial counterparty agreements, whistleblower policies, employment templates, board charter) as appropriate.

Foundational doctrine. Director fiduciary duty under ABCA section 122 is owed to the corporation; directors may consider stakeholders per *Peoples v. Wise* (2004 SCC 68) and *BCE v. 1976 Debentureholders* (2008 SCC 69). The Founders, sitting as the board, hold themselves

to the Mission Anchor as the operative working definition of the long-term best interests of the Company.

Counterparty jurisdictions are preserved: Mench Capital Corp. and Capiche Capital remain British Columbia entities; Fasken Martineau DuMoulin LLP retains the BC side of any matter that touches British Columbia; Osler, Hoskin and Harcourt LLP retains the Alberta side. The Company itself is incorporating under the ABCA.

The Mission

To protect the right of Canadians to hold sound money, money that carries all of its principles intact, including the long-term storage of value, and to build the regulated infrastructure that allows Canadians to access, hold, transact in, and pass to the next generation, the full range of assets the world has to offer, on terms that respect their sovereignty, their privacy, their conscience, and their long horizon.

The Values

The Company holds and operates by the following ten values. Each is a permanent commitment of the Company, binding on every Founder, director, officer, employee, and agent.

Privacy. The default state of a Canadian's affairs is their own. We design, build, and operate accordingly.

Autonomy. The right of every Canadian to act, transact, and choose without seeking permission for lawful conduct.

Sovereignty. Control over one's assets, identity, and consent rests with the person, not with intermediaries.

Honor. We keep our word, and our word precedes our reputation.

Security. The platform must be operationally, cryptographically, and procedurally sound. There is no excuse for negligence with what is entrusted to us.

Good Faith. We deal fairly. We do not manipulate. We do not deceive.

Brothers' Keeper. We are responsible to and for each other, our customers, our staff, our partners, and the Canadians we serve.

Stewardship. Every resource entrusted to the Company belongs to those we serve. We hold it in trust.

Truth. We tell the truth whether it costs us or not. We will not soften facts to spare ourselves discomfort or to please power.

Discipline. We do the uncomfortable work. We finish what we begin. We do not negotiate with our standards.

The Disciplines

The values above are operationalized through the following disciplines, which govern how the Company conducts itself in practice.

- We do the uncomfortable work that others avoid.

- We always tell the truth, even when costly.
- We let go of the outcome in order to protect the people we serve.
- We steward our resources for Canadians first and for the long horizon.
- We build for decades, not quarters. We do not adopt or operate against quarterly targets.
- We will not sell our soul, our customers, our data, or our mission for short-term capital, valuation, or convenience.
- We serve. We do not rule.

Our Positive Commitments

The Company commits to build, maintain, and offer the following to Canadians, and to do so on the terms set out in this Mission Anchor.

Asset rails. Regulated infrastructure to buy, sell, move, store, and verify assets, including the principles of money: store of value, medium of exchange, unit of account, durability, divisibility, portability, fungibility, scarcity, recognizability, acceptability, and the right of redemption.

Fractional ownership. Access to assets that have historically been gated to institutions, on a fractional, regulated, and verifiable basis.

Creative financing and investing. Structured financing and investment products that align capital with sovereign, mission-aligned outcomes for Canadians.

Custody and settlement. Fiduciary, regulated custody, settlement, and clearing, with customer assets legally segregated and never rehypothecated.

Identity and verification. Proof of what is needed without exposure of what is not. Privacy-preserving verification infrastructure.

Cross-border value movement. Movement of value across jurisdictions without rent-seeking intermediaries and without surrender of sovereignty.

Lending and credit. Lending against tokenized assets without forced asset surrender, without coercive default conditions, and without political conditioning of access.

Hedging against debasement. Access to monetary anchors, including gold, silver, real estate, and other hard assets, as durable stores of value against currency erosion.

Generational transfer. Inheritance, estate, and succession infrastructure that survives the holder and transfers cleanly across generations of a Canadian family.

Resilience. Operational, technical, and legal resilience to keep functioning through political, regulatory, and currency shocks.

Education. Education of Canadians on the principles of money, sovereignty, and stewardship, so the mission is durable beyond the Company.

Innovation. Innovation with new products, systems and ideas to serve Canadians and help Canada lead the global stage of Fintech.

Our Customer Protections

The following protections are constitutional commitments of the Company. They define how the Company treats the Canadians it serves and the standards by which the Company holds itself accountable.

- 1. Politically-Neutral Service.** The Company serves Canadians on the basis of their identity as customers, not on the basis of their politics, faith, beliefs, or affiliations. No customer account is closed, frozen, restricted, or denied service on those grounds. We require a final court order with judicial review available before taking any restrictive action on a customer's account.
- 2. Customer Data Sovereignty.** Customer data belongs to the customer. The Company shares customer data, metadata, or transaction information with government, regulator, agency, or non-judicial body only on a final court order with judicial review available.
- 3. Independent Operation.** The Company operates as an independent Canadian financial institution accountable to its own customers and to law. We do not participate in industry-wide blacklists, coordinated de-risking initiatives, or informal arrangements among institutions to deny service.
- 4. Customer-Controlled Assets.** Assets held with the Company are the customer's to direct. The Company does not build or participate in infrastructure that enables third-party conditional control over a customer's own assets.
- 5. Minimum-Necessary Data.** The Company collects, retains, and uses customer data only to the extent operationally necessary to deliver the service or strictly required by law.
- 6. No Data Monetization.** Customer data is not a product. The Company does not sell, license, or share customer data for advertising, profiling, behavioural scoring, or ideological assessment.
- 7. No Social-Credit Participation.** The Company does not participate in social-credit, behavioural-conditioning, or ideological gatekeeping systems, whether public or private.
- 8. Freedom of Conscience.** Lawful expression, belief, faith, and affiliation do not impair a Canadian's access to the Company's services.
- 9. Customer Asset Integrity.** Customer assets are the customer's property at all times. They are legally segregated, never commingled with Company funds, never rehypothecated, and never used as collateral for the Company's operations or third-party financing. If the Company ever ceases to operate, customer assets are bankruptcy-remote and recoverable in full.
- 10. Long-Horizon Operation.** The Company is built for decades. It does not operate against quarterly earnings targets or short-cycle growth metrics as primary directional inputs.
- 11. Protection of Refusers.** Any employee, officer, director, customer, or partner who refuses to participate in conduct inconsistent with the Mission Anchor is protected from retaliation, termination, denial, or adverse action.

12. Mission Permanence. The commitments in this Mission Anchor are permanent. They are not negotiable under political, commercial, regulatory, or shareholder pressure outside of law. The Mission Anchor may be strengthened, never weakened.

How We Hold Ourselves to This

The Company adopts the following commitments to make the Mission Anchor durable. The mechanisms below reflect the Company's elected soft-law approach: published values, contractual incorporation across the Company's principal agreements, and direct accountability of the Founders, sitting as the board.

- 1. Public Mission Anchor.** The Mission Anchor is published on the Company's website in full and is included in every offering document, customer-facing material, and partner agreement. Any Canadian may read it.
- 2. Founders' Personal Commitment.** Each Founder personally commits, in the Founders' Voting Agreement, to refuse to vote for or authorize any matter that would constitute a material deviation from this Mission Anchor. The Founders' refusal right is unconditional.
- 3. Advisor and Officer Acknowledgment.** Every advisor, officer, director, and material contractor signs an acknowledgment of this Mission Anchor as a condition of engagement.
- 4. Customer Terms Incorporation.** This Mission Anchor is incorporated by reference into the Company's customer terms of service, giving customers contractual standing to invoke its protections.
- 5. Annual Mission Anchor Disclosure.** No later than ninety (90) days after the end of each fiscal year, the Company publishes a Mission Anchor Compliance Report listing material requests, refusals, and pressure events of the prior year.
- 6. Customer-Asset Segregation.** Customer assets are at all times legally segregated, bankruptcy-remote, not rehypothecated, and not pledged as Company collateral. Segregation is operationally maintained and externally attestable.
- 7. Notice-and-Cure; Judicial-Order Requirement.** The Company does not freeze, restrict, close, or modify any customer account, service, or asset access in response to any non-judicial request. A final court order with judicial review available is required.
- 8. Whistleblower Protection.** Any employee, officer, director, contractor, advisor, or agent who reports conduct inconsistent with this Mission Anchor is protected from retaliation. Whistleblower protection is incorporated into employment, advisor, and contractor agreements.
- 9. Material-Vendor Alignment.** Any material vendor, partner, counterparty, or contracted service provider with access to customer data, customer assets, or customer service infrastructure must contractually align with the operative protections of this Mission Anchor.
- 10. Compensation Alignment.** No officer, director, employee, or advisor compensation, equity grant, bonus, or incentive is structured in a manner that rewards conduct inconsistent with this Mission Anchor.

- 11. Long-Horizon Mandate.** The Company does not adopt or operate against quarterly earnings targets, quarterly growth projections, or any short-cycle financial metric as a primary directional input.
- 12. Conscience Protection.** No employee, officer, director, customer, or partner is required to participate in any transaction, partnership, or activity that violates their faith, conscience, or principles, where alternative arrangements can be made consistent with the Company's obligations.
- 13. Values-Aligned Partnership.** The Company partners, contracts, and accepts capital from those who align with this Mission Anchor. Values alignment is a precondition; financial alignment is downstream.
- 14. Acquisition Discipline.** Any proposed sale, merger, change of control, or significant strategic transaction is evaluated against the Mission Anchor before any other consideration. The Company will not transfer control to parties whose stated mission, ownership structure, or pattern of conduct is inconsistent with this Mission Anchor.
- 15. Jurisdictional Resilience.** Where the law of a jurisdiction in which the Company operates is amended in a manner that would compel the Company to act inconsistently with this Mission Anchor, the Company will, to the extent legally available, withdraw the relevant service from that jurisdiction or migrate to a jurisdiction in which the protections can be maintained.
- 16. Founders' Right of First Refusal on Share Transfers.** Before any shareholder (including any Founder) may transfer shares to a third party, or before any shares pass to a beneficiary on death or permanent disability, the other Founders (and, secondarily, the Company) hold a right of first refusal to acquire the shares at fair market value, exercisable within ninety (90) days of notice. Any acquirer who proceeds remains bound by this Mission Anchor.
- 17. Key Person Continuity.** On the death or permanent disability of any Founder or Key Person, vested equity passes to the designated beneficiary, subject to the Founders' Right of First Refusal above. The beneficiary remains bound by the Mission Anchor and the Founders' Voting Agreement.
- 18. Code and Specification Transparency.** To the extent compatible with security and customer protection, the Company publishes the operating specifications of decisions that affect customer assets, customer data, account access, and account restrictions.
- 19. Public Standing.** Any Canadian customer of the Company, and any holder of equity in the Company, has standing to invoke the protections of this Mission Anchor through internal escalation, the Mission Anchor Compliance Report process, or the courts of competent jurisdiction.
- 20. Mission Permanence.** This Mission Anchor may be strengthened by Founder consensus. It may not be weakened. Any proposed amendment that would reduce a customer protection or structural commitment requires Founder consensus AND a publicly-posted explanation of why the change is consistent with the Mission Anchor's purpose.

How the Commitment Holds

Each commitment in this Mission Anchor is a constitutional commitment of the Company. No Founder, director, officer, employee, or majority of shareholders may direct, vote for, or authorize a material deviation from any provision in this Mission Anchor.

Where a proposed action is asserted by any Founder, director, officer, employee, or customer to constitute a material deviation from this Mission Anchor, the question is referred to independent legal counsel and to the Advisory Council for review. No further vote, authorization, or implementation occurs until the question is resolved consistent with this Mission Anchor.

This Mission Anchor is held mutually by each Founder and by the Company itself. It exists for the protection of the Company, its mission, and the Canadians it serves.

Annexes (for Counsel)

Annex A. ABCA Provisions Referenced

Section 122 (ABCA): director and officer fiduciary duty owed to the corporation; limit on contracting out (s. 122(3)).

Section 242 (ABCA): oppression remedy; available to a complainant where the affairs of the corporation are conducted in a manner that is oppressive or unfairly prejudicial.

Annex B. Foundational Case Law

Peoples Department Stores Inc. (Trustee of) v. Wise, 2004 SCC 68. Directors owe a fiduciary duty to the corporation alone, and may consider the interests of shareholders, employees, suppliers, creditors, consumers, governments, and the environment.

BCE Inc. v. 1976 Debentureholders, 2008 SCC 69. Directors must act as a good corporate citizen; no duty to maximize shareholder value in change-of-control or otherwise.

Reference case: Federal Court ruling on the 2022 invocation of the Emergencies Act (Mosley J., January 23, 2024) held that the invocation, and the freezing of accounts under the Emergency Economic Measures Order, was unreasonable and violated the Canadian Charter of Rights and Freedoms. The case is referenced as the factual record underlying the Politically-Neutral Service and Notice-and-Cure protections in this Mission Anchor.

Annex C. Jurisdictional Note (Alberta Incorporation; BC Coordination)

The Company is incorporating under the Business Corporations Act (Alberta). The ABCA does not have a benefit-company regime equivalent to BCBCA Part 2.3. The Company has, as set out in the Counsel Review above, elected a soft-law approach for the Mission Anchor rather than seeking Articles entrenchment or transferring director powers to a Mission Stewardship Trustee under a Unanimous Shareholders' Agreement.

Counterparty jurisdictions are preserved. Mench Capital Corp. and Capiche Capital are British Columbia entities and their regulated activity in BC remains subject to BC securities law. Fasken Martineau DuMoulin LLP retains the BC side of any matter that touches British Columbia; Osler, Hoskin and Harcourt LLP retains the Alberta side.

Annex D. Drafting Note for Counsel

This Mission Anchor is a working draft prepared by the founders to inform counsel's review and to publish to the data room. It is not a binding legal document in its current form. Counsel is invited to recommend contractual reinforcements consistent with the elected soft-law approach.

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Contractual Incorporation Mechanism (Version 11)

In Version 11, the Mission Anchor is incorporated by reference into each of the following operative agreements. Deviation from the Mission Anchor is a material breach of each such agreement. Any shareholder or Mission Stewardship representative may sue for specific performance and may seek injunctive relief without posting bond.

- Shareholders' Agreement
- Founders' Voting Agreement
- Advisor Agreements (Mench Capital Advisor Agreement, Advisory Council seats, all advisor grants)
- Employment Agreements (all officers and employees)
- Vendor Agreements (material vendor contracts, including custody, banking, and technology suppliers)

The soft-law posture (Articles-embedded Mission Anchor without a benefit-company statute) remains the primary approach. The contractual incorporation mechanism operates as a second, enforceable layer that binds the Company and its counterparties to the Mission Anchor as a matter of contract, in addition to the corporate-law obligations set out in the Articles.